

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- X
CHRISTOPHER SANTOS,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD OFFICER
NICHOLAS KANE, Shield No. 6822, DETECTIVE PAUL
ACOSTA, Shield No. 2042, JOHN AND JANE DOE
NYPD POLICE OFFICERS/SERGEANTS 1-10Plaintiff designates New York
County as the place of trial.Defendants.
----- X**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 11, 2022

Yours, etc.

C. Cass Luskin

Cass Luskin, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD OFFICER NICHOLAS KANE, 34 PCT, 4295 Broadway, New York, NY 10033
NYPD DETECTIVE PAUL ACOSTA, CRIMINAL INTELLIGENCE, 1 Police Plaza,
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

CHRISTOPHER SANTOS,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
NICHOLAS KANE, Shield No. 6822, DETECTIVE PAUL
ACOSTA, Shield No. 2042, JOHN AND JANE DOE
NYPD POLICE OFFICERS/SERGEANTS 1-10

JURY TRIAL DEMANDED

Defendants.

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Plaintiff CHRISTOPHER SANTOS, by his attorneys, Shulman and Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 12, 2020, at approximately 11:00 a.m., plaintiff CHRISTOPHER SANTOS, while lawfully at or around 25 Arden Street, County of New York, State of New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was also denied appropriate medical treatment while in custody requiring him to get a catheter placed in his chest subsequent to his release, as well as suffering mental and emotional injury as a result. Plaintiff was subjected to unlawful assault and battery by police officers, was denied proper medical care, and unlawfully imprisonment at various locations for approximately 6 days before Plaintiff was finally released after posting bail. Plaintiff's criminal case was dismissed and sealed on May 26, 2021. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, assaulted and battered, confined, falsely arrested, falsely imprisoned, failed to provide medical care and fabricated evidence against Plaintiff in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff CHRISTOPHER SANTOS is a resident of the state of New York.
3. NYPD OFFICER NICHOLAS KANE, Shield No. 6822, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD OFFICER NICHOLAS KANE, Shield No. 6822, is currently and was at all times relevant herein, assigned to the 34 Precinct.
5. NYPD OFFICER NICHOLAS KANE, Shield No. 6822, is being sued in his individual and official capacities.
6. NYPD DETECTIVE PAUL ACOSTA, Shield No. 2042, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD DETECTIVE PAUL ACOSTA, Shield No. 2042, is currently and was at all times relevant herein, assigned to the Criminal Intelligence Section.
8. NYPD DETECTIVE PAUL ACOSTA, Shield No. 2042, is being sued in his individual and official capacities.
- 9.
10. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
11. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 34th Precinct.
12. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.
13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police

force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

15. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law and filed on September 1, 2021.

16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On October 12, 2020, at approximately 11:00 A.M., Plaintiff was lawfully at or around 25 Arden Street, County of New York, State of New York, when he was subjected to an unlawful stop, question, frisk, search, false arrest, false imprisonment and denial of medical care by the defendant New York City police officers.

20. Plaintiff is a 23-year-old young man who has long suffered from kidney failure and who received a transplant at the age of 18.

21. Every morning, Plaintiff has to take eight (8) different anti-rejection medications in order to protect his transplanted kidney.

22. On morning of October 12, 2020, Plaintiff was in his room sleeping when four uniform police officers, with guns drawn, began pounding on his apartment door.

23. Plaintiff opened the door and was ordered to the ground immediately by officers.

24. Plaintiff was detained, searched, handcuffed, and transported to the 34 Police Precinct.

25. Plaintiff was not able to take his medication before being arrested at gunpoint.

26. Defendant Officers also seized Plaintiff's property, to wit, his keys and cellphone. The cellphone has not been returned as of the filing of this complaint.

27. Plaintiff was transported to the 34th Police Precinct, where he was searched, fingerprinted and photographed.

28. Plaintiff was not provided with a mask at the 34th Police Precinct despite being particularly vulnerable to COVID-19.

29. While at the 34 Precinct, Plaintiff repeatedly told defendant Officers that he needed to take his anti-rejection medication to no avail.

30. Over the course of approximately 24 hours at the Precinct, Plaintiff told defendant Officers eight (8) separate times that he needed to take his anti-rejection medication.

31. Defendant Officers refused to provide Plaintiff with medical attention, stating that he would receive help at Central Bookings.

32. Plaintiff also told Defendant Officers that he was anemic, and they gave the same response.

33. Defendant Officers did, however, interrogate Plaintiff while at the Precinct, and falsely accuse him of a crime he did not commit, to wit, a gang assault that had occurred a month prior.

34. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

35. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

36. On the morning of October 13, Plaintiff arrived at Central Booking.

37. At Central Booking, Plaintiff again informed defendant Officers that he needed medical attention, he had to take his anti-rejection medication, and instead they refused and gave him Tylenol.

38. Plaintiff even showed the kidney surgery scar to try to get his medication, to no avail.

39. Plaintiff did not receive medical treatment at Central Bookings.

40. Plaintiff was again fingerprinted and photographed at Central Booking, and additionally underwent a retinal scan.

41. Plaintiff was placed into a cell with 20 other people, none of whom were wearing masks.

42. After approximately another day and a half, Plaintiff went before a Judge.

43. On information and belief, during this time, defendant Officers falsely communicated, or had communicated on their behalf, allegations that Plaintiff had committed a crime to Assistant District Attorneys at the Early Case Assessment Bureau for New York County, to wit: Gang Assault.

44. Defendant Detective Acosta claimed that he himself recognized the Plaintiff on video surveillance as being present and committing a crime.

45. No Complaining witness or victim identified Plaintiff as being involved.

46. No lineup or Identification procedure was done involving Plaintiff.

47. Defendant Officer Kane signed a criminal complaint charging Plaintiff with the above-described charges, and attesting to manifestly false factual allegations, on October 12, 2020, at 11:15 P.M.

48. The criminal complaint also contained false statements of material fact from other Defendant Officers.

49. As a direct result of these false allegations, Plaintiff was ordered held on bail by the arrainging Judge, and was transferred to Riker's Island shortly thereafter.

50. Plaintiff was unable to post bail until five (5) days later, during which time he was detained pre-trial at Rikers Island.

51. While at Rikers Island, Plaintiff again tried to receive medical attention.

52. While at Riker's Island, Plaintiff began to suffer back pain because he was not given a mattress to sleep on until his third day at Riker's.

53. Plaintiff at this point began suffering the tell-tale side effects of organ rejection, including weakness, fatigue, and shortness of breath, as he had not been able to take his anti-rejection medication since before his arrest.

54. Despite going to medical on Riker's Island, Plaintiff was still not given his anti-rejection medication.

55. Plaintiff was released from Riker's on October 16, 2020, and he immediately went home and took his anti-rejection medication.

56. The next day, October 17, 2020, Plaintiff saw his Primary Care Physician. Plaintiff's Primary Care Physician determined that Plaintiff's kidney function had deteriorated such that hospitalization was needed.

57. Plaintiff checked into the hospital on November 2, 2020 and remained there for approximately a month.

58. Upon admission, Plaintiff had a catheter surgically inserted and received plasmapheresis treatment, among other things, in an attempt to restore kidney function.

59. Plaintiff had seven more court appearances while his case was still pending.

60. On May 26, 2021, all criminal charges against Plaintiff were dismissed and sealed.

61. Plaintiff is receiving ongoing treatment from area hospitals and his primary care physician as his injuries continue to develop.

62. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

63. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, denial of Plaintiff's right to a fair trial and denial of proper medical care by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

64. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

65. The illegal approach, pursuit, stop, questioning, and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

66. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

67. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

70. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

71. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

73. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

74. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

75. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

79. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

80. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

66. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

70. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein

71. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

73. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

74. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to unlawful search and other physical constraints.

77. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

81. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

82. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

83. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

84. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

85. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

86. As a result of the foregoing, Plaintiff sustained, inter alia, physical pain and suffering, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: physical, economic, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION **Deliberate Indifference to Medical Needs**

90. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

91. Defendants despite being aware that Plaintiff was suffering the rejection of his kidney implant and required medication and additional treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

92. The delay in medical treatment to Plaintiff's injuries resulted in a month-long hospitalization, increased severity in Plaintiff's nephrological injuries that were suffered by Plaintiff that would have been prevented if Plaintiff received treatment in a timely manner.

93. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Malicious Prosecution

97. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

98. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

99. Defendants commenced and continued a criminal proceeding against Plaintiff.

100. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

101. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

TENTH CAUSE OF ACTION

Negligence

102. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

103. Defendants owed a duty of care to Plaintiff.

104. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by injuring his left foot.

105. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

106. All of the foregoing occurred without any fault or provocation by Plaintiff.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

110. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff CHRISTOPHER SANTOS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
January 11, 2022

Yours, etc.

C. Cass Luskin

Cass Luskin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD OFFICER NICHOLAS KANE, 34 PCT, 4295 Broadway, New York, NY 10033
NYPD DETECTIVE PAUL ACOSTA, CRIMINAL INTELLIGENCE, 1 Police Plaza,
New York, NY 10038

ATTORNEY'S VERIFICATION

CASS LUSKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN AND HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 11, 2022

C. Cass Luskin
CASS LUSKIN